

Amendment No. 1 to SB1938

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1938

House Bill No. 1765*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-13-113(g), is amended by deleting "A violation of subsection (a)" and substituting "Except as provided in subdivision (g)(2), a violation of subsection (a)".

SECTION 2. Tennessee Code Annotated, Section 39-13-113(g), is amended by designating the current language as subdivision (g)(1) and adding the following subdivision (g)(2):

(2)

(A) A violation of subsection (a) is a Class E felony if:

(i) The offender knowingly violated a lifetime order of protection issued pursuant to § 36-3-627; and

(ii) The conviction on which the lifetime order of protection is based was for an offense involving the use of force against a victim.

(B) Any sentence of incarceration imposed must be served consecutively to the sentence for any other offense that is based in whole or in part on the same factual allegations. However, the sentencing judge may specifically order the sentences for offenses arising out of the same facts to be served concurrently.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts committed on or after that date.